

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/20/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01571
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
TENTATIVE RULING:

Before the Court is Defendant Contra Costa Ballet Centre's ("Defendant" or "Ballet Centre") Demurrer

to Plaintiff's First Amended Complaint. Defendant moves as to four of the seven causes of action asserted against it: (1) Intentional Infliction of Emotional Distress (1st CoA), (2) Negligent Failure to Warn (5th CoA), Constructive Fraud (6th CoA), and Sexual Harassment under Civil Code § 51.9 and 52 (7th CoA).

The hearing on the demurrer is continued until **April 3, 2026** as outlined below.

Factual Allegations

At all relevant times, non-moving Defendant Viktor Kabaniaev was a dance instructor and teacher employed by moving Defendant Ballet Centre. (¶ 5, 15.) Plaintiff was a student enrolled at the Ballet Centre and was instructed and taught by Defendant Kabaniaev. (¶ 15.) Between the years of 2000 and 2004, while Plaintiff was between twelve and sixteen years old, Defendant Kabaniaev sexually assaulted and abused Plaintiff while working for Defendant. (¶ 33.) This abuse occurred at Ballet Centre's facilities as well as other locations including other dance studios in the area. (¶ 33 a.)

It is generally alleged, on information and belief, that Defendant knew or had reason to know that Kabaniaev had engaged in unlawful sexually related conduct in the past, and that there was a probability that he would assault minors with whom he came into contact. (¶¶ 18-19.) Defendant failed to implement reasonable safeguards to protect Plaintiff and others from Kabaniaev's conduct and failed to warn Plaintiff and others of his past unlawful behavior. (¶¶ 20-22.) It is alleged that Defendant Ballet Centre allowed Kabaniaev to be alone in secluded environments with Plaintiff, allowed him to remain in his position when they had reason to know he sexually abused minors previously, and failed to investigate complaints. (¶ 24.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2010) p. 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2008) p. 7:295.)

Meet and Confer

Before filing a demurrer, the "demurring party shall meet and confer in person, by telephone or by video conference with the party who filed the pleading that is subject to the demurrer...." (Code Civ. Proc. § 430.41(a) (emphasis added.) The meet and confer "shall" include a discussion of the legal support for the Parties' positions. (Code Civ. Proc. § 430.41(a)(1).) As for the party who filed the complaint (i.e. Cross-Complainants), they "**shall provide** legal support for its position that the

pleading is legally sufficient or, in the alternative, how the complaint ... could be amended to cure any legal insufficiency.” (*Ibid.* emphasis added.)

The demurring party shall file and serve a declaration stating that either:

- “(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to the demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. [or]
- (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc. § 430.41(a)(3).)

Plaintiff filed her FAC on August 29, 2025. It was electronically served that same day. As such, any responsive pleading was due on or before October 1, 2025. Per the Code of Civil Procedure, the above mandatory meet and confer was required to have taken place by September 26, 2025. (Code Civ. Proc. § 430.41 (a)(2).)

Defendant’s counsel filed a declaration indicating that she sent a detailed meet and confer letter to Plaintiff’s counsel on September 24, 2025 – two days before the deadline. (Oliver Decl. ¶ 6.) The letter requests that Plaintiff’s counsel respond by September 26, and indicates that if no response is received, they will file a demurrer/motion to strike. (*Id.* at Ex. C.) There is no discussion of requesting a time to speak in person or by phone/video conference.

Not receiving a response, Defendant’s counsel filed a Declaration in Support of Automatic Extension of September 29, 2025. That declaration identified the September 24 letter and the lack of a response as the basis for the requested automatic extension. The filing of the Declaration in Support of Automatic Extension thereby extended the time to respond to October 31, 2025.

It appears that Plaintiff’s counsel finally responded to Defense counsel’s letter on October 4, 2024. The letter notes that it is a response to defense counsel’s letter. It does not indicate that the parties spoke at all regarding the issue. The letter indicates that Plaintiff “agrees to withdraw” the fifth and sixth causes of action. (Oliver Decl. Ex. A.)

Defendants filed their Demurrer and Motion to Strike on October 29, 2026. As noted above, the declaration in support indicates that Defendant’s counsel sent a single letter to Plaintiff’s counsel on September 24, 2025. It required a response within two days and did not specifically seek any kind of verbal discussion between counsel – *i.e.* in person, or via telephone or video conference. Plaintiff’s counsel did not respond until after the automatic extension was granted. After the extension was granted, Plaintiff’s counsel responded via a responsive letter.

The Code is very clear that counsel for the parties are required to **speak** to each other and to make a **good faith attempt** to resolve their issues before filing a demurrer (or motion to strike). The ‘efforts’ outlined by Defense counsel’s declaration indicates this did not occur. This is especially concerning here, where Plaintiff’s counsel agreed to withdraw two of their causes of action, but then does not follow through with that agreement.

Conclusion

The Court orders as follows:

- The parties are ordered to meet and confer in person, via telephone or video conference on or before 5:00 p.m. on **March 13, 2026**.
- Defense counsel shall file a declaration by 4:00 p.m. on **March 18, 2026** confirming when and how the meet and confer took place.
- The declaration shall state that the Parties either (1) reached an agreement on the merits of the Demurrer and the Parties are stipulating to the filing of an amended complaint, or (2) did not reach an agreement and the Court should proceed with ruling on the Demurrer as filed – or any portion thereof to which the Parties could not agree. (For example, if Plaintiff does agree to withdraw either or both of the fifth and sixth causes of action, the parties shall notify the Court of this.)

The hearing on the matter is continued until **April 3, 2026**.

2. 9:00 AM CASE NUMBER: C22-01571
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
TENTATIVE RULING:

See line 1.

3. 9:00 AM CASE NUMBER: C23-01752
CASE NAME: MARY WALDEN VS. GREGG DRILLING & TESTING, INC.
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: GREGG DRILLING, LLC
TENTATIVE RULING:

Before the Court is Defendant Gregg Drilling Testing, Inc. (“Defendant” or “GDT”)’s motion for summary judgment or, in the alternative, for summary adjudication. The motion is opposed by Plaintiff Mary Walden (“Plaintiff” or “Ms. Walden”). This motion relates to the complaint filed by Plaintiff alleging (1) gender-based employment discrimination, (2) age-based employment discrimination, (3) failure to prevent, investigate, and remedy discrimination and retaliation, (4) retaliation, and (5) wrongful termination.

Defendant moves for summary judgment on the grounds that (1) Ms. Walden’s claim for gender-based discrimination fails because her allegations related to compensation fall outside the scope of her administrative charge, her allegations regarding compensation extending back through 27 years of employment are time-barred as ancient activities, she cannot establish a *prima facie* case of gender-based discrimination, and GDT had a legitimate business purpose for demoting and ultimately terminating her; (2) Ms. Walden’s age-based discrimination claim fails because she cannot establish a